

Council Procedure By-law, 2026

Repeals and replaces By-law No. 2014.2, the Council Accountability and Procedures By-law

Draft for enactment by Council and ratification by the Electors | September 30, 2026

Status	Draft by-law for enactment by Council under section 26.1 of By-law No. 2014.2 and paragraph 2(3)(b) and section 81 of the Indian Act, and for ratification by the Electors.
Replaces	By-law No. 2014.2, Council Accountability and Procedures By-law.
Works with	Conduct and Conflict of Interest Code (Document 07), Financial Administration Code (Document 09), Access to Information and Privacy Code (Document 14).
Comes into force	On publication under section 86 of the Indian Act. Protected Provisions may be amended only with the approval of the Electors (section 29).
Legal review	To be reviewed by legal counsel before adoption.

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**By-law No. _____ of the FORT McMURRAY No. 468 FIRST NATION
COUNCIL PROCEDURE BY-LAW, 2026**

WHEREAS the Fort McMurray No. 468 First Nation has the inherent Aboriginal and Treaty right to govern relations among its Members and between the Fort McMurray No. 468 First Nation and other governments, recognized and affirmed by section 35 of the *Constitution Act, 1982*; and

WHEREAS this By-law is an exercise of that right, and nothing in it may be construed so as to abrogate or derogate from any Aboriginal or Treaty right of the Fort McMurray No. 468 First Nation; and

WHEREAS paragraph 2(3)(b) of the *Indian Act*, R.S.C. 1985, c. I-5, provides that a power conferred on the council of a band is exercised with the consent of a majority of the councillors of the band present at a meeting of the council duly convened, and paragraphs 81(1)(c), (d), and (q) of that Act provide that the council may make by-laws for the observance of law and order, the prevention of disorderly conduct, and matters arising out of or ancillary to the exercise of those powers; and

WHEREAS the Council enacted By-law No. 2014.2, the Council Accountability and Procedures By-law, which section 26.1 of that by-law permits the Council to amend by motion; and

WHEREAS the Council wishes to repeal and replace By-law No. 2014.2 with rules that require decisions to be made in public, recorded, published, and reported to Members;

NOW THEREFORE THE CHIEF AND COUNCIL OF THE FORT McMURRAY No. 468 FIRST NATION ENACT AS FOLLOWS:

Part 1
Interpretation

1 Short Title

1.1 This By-law may be cited as the *Council Procedure By-law, 2026*.

2 Definitions

2.1 In this By-law:

- (a) "Accountability Session" means an Information Meeting held under section 11;
- (b) "Administration" means all employees of the First Nation;
- (c) "Band Manager" means the senior employee of the First Nation responsible for Administration, however titled;
- (d) "Band Offices" means the locations at which the First Nation carries on its day to day business;
- (e) "Chief" means the person elected to the office of Chief under the Election Regulations;
- (f) "Closed Session" means a part of a Council Meeting from which Members are excluded under section 16.3;
- (g) "Conduct Code" means the Conduct and Conflict of Interest Code of the First Nation;

- (h) "Confidential Information" means:
 - (i) information which could prejudice the First Nation's negotiating or financial position if it became publicly available, for so long as that prejudice could occur;
 - (ii) information which was provided by a Member in confidence;
 - (iii) information about a Member in respect of which that Member has a reasonable expectation of privacy;
 - (iv) legal advice subject to solicitor-client privilege; and
 - (v) information about an identifiable employee's personnel file, discipline, or health;
- (i) "Conflict of Interest" has the meaning given in the Conduct Code;
- (j) "Council" means the persons elected under the Election Regulations who hold the office of Chief or Councillor;
- (k) "Council Meeting" means a meeting of Council duly convened under this By-law;
- (l) "Council Secretary" means the person appointed under section 24;
- (m) "Councillor" means a person elected to the office of Councillor under the Election Regulations;
- (n) "Elder" means a person who is an aged and respected Member knowledgeable in the practices, customs, traditions, and ways of the First Nation;
- (o) "Election Regulations" means the Customary Election Regulations of the First Nation as amended from time to time;
- (p) "Elector" has the meaning given in the Election Regulations;
- (q) "Finance Officer" means the senior financial employee of the First Nation;
- (r) "First Nation" means the Fort McMurray No. 468 First Nation;
- (s) "First Nation Business Entity" has the meaning given in the Election Regulations;
- (t) "Immediate Family" has the meaning given in the Election Regulations;
- (u) "Information Meeting" means an assembly of Members called to receive or provide information;
- (v) "Integrity Commissioner" means the Integrity Commissioner appointed under the Conduct Code;
- (w) "Member" means a person whose name appears on the Membership List of the First Nation, whether the person lives on or off a Reserve;
- (x) "Member Access Meeting" means a meeting held under Part 6 at which Members may discuss matters of individual concern with Council or individual members of Council;
- (y) "Notice" means a written notice posted in a publicly accessible area of each Band Office and on the website of the First Nation;
- (z) "Portfolio" has the meaning given in the Election Regulations;
- (aa) "Portfolio Mandate" means the statement of goals published by a member of Council under section 9;
- (bb) "Protected Provision" means a provision listed in section 29.2;
- (cc) "Quorum of Council" means a majority of the Seats on Council as set by the Election Regulations, subject to any rule in those Regulations that applies when fewer members hold office;

- (dd) "Resolution" means a motion approved by a majority of the members of Council present at a Council Meeting at which a Quorum of Council is present, and recorded in a written Band Council Resolution; and
- (ee) "Special Meeting" means an assembly of Members or Electors called to receive information or to vote on one or more questions.

Part 2

Duties of the Chief and Council

3 Governance Authority

3.1 The Council shall exercise its governance authority consistent with:

- (a) the culture, traditions, and values of the First Nation as expressed by its ancestors and Elders and as modified by the needs of the First Nation as a modern community;
- (b) participation in Council activities for the benefit of the Members as a whole, and not in the service of individual Members or family groups;
- (c) the Treaty, Aboriginal, and inherent rights to self-government and self-determination;
- (d) the principle that the powers of Council are exercised only by Resolution passed with the consent of a majority of the members of Council present at a Council Meeting at which a Quorum of Council is present;
- (e) the statutory and administrative authorities and responsibilities set out in the *Indian Act*, the Election Regulations, this By-law, and other applicable laws;
- (f) the common law and fiduciary obligations to manage the property, funds, and other assets of the First Nation in a reasonable, transparent, and accountable manner;
- (g) the obligations set out in contribution agreements and other agreements with funding agencies and governments; and
- (h) the role of Council relative to Administration. No individual member of Council shall direct, supervise, or interfere with any employee, except through direction given by Council as a whole by Resolution to the Band Manager.

4 Communication with Members

- 4.1 The Council shall communicate with Members by:
- (a) holding an Annual General Assembly no later than one hundred and fifty (150) days after the end of each fiscal year, at which the audited consolidated financial statements, the schedule of remuneration and expenses of the Chief and Councillors, the annual report of each member of Council, and the annual reports of the Integrity Commissioner, the Finance and Audit Committee, and the Appeals Panel are presented;
 - (b) holding an Accountability Session in each quarter of the fiscal year under section 11;
 - (c) holding Special Meetings as necessary;
 - (d) holding Member Access Meetings at least once each month;
 - (e) consulting with Elders as necessary;
 - (f) publishing every by-law, code, and policy in force on the website of the First Nation, and providing a copy to any Member who requests it; and
 - (g) providing a copy of the annual audited consolidated financial statements, and of the schedule of remuneration and expenses of the Chief and Councillors, to any Member who requests it.
- 4.2 Every Annual General Assembly and Accountability Session shall be held at a Band Office, with a way for Members to attend and ask questions online, and at least one each year shall be held in, or streamed to a location in, the city in which the largest number of Members living off the Reserves reside.
- 4.3 Notice of an Annual General Assembly, Accountability Session, Information Meeting, or Special Meeting shall be posted at least fourteen (14) days in advance, and shall be sent by mail or email to every Member whose address is known, except where a shorter period is permitted by the Election Regulations or required by an emergency.
- 4.4 Communications with third parties on behalf of the First Nation must be authorized by Council. No member of Council may represent that they have authority to bind the First Nation, or make any statement on behalf of the First Nation, without prior authorization by Resolution.

5 Attendance and Remuneration

5.1 Each member of Council shall:

- (a) attend all Council Meetings, Annual General Assemblies, Accountability Sessions, scheduled Member Access Meetings, and Special Meetings, unless attending to other First Nation business, or unable to attend because of an emergency, a natural disaster, a death in the family, illness, a court appearance, or another circumstance accepted by Resolution;
- (b) notify the Council Secretary before a meeting of any absence, and give reasons in writing for any absence from a Council Meeting;
- (c) attend and represent the First Nation at functions, meetings, and other occasions on and off Reserve, as directed by Resolution;
- (d) prepare in advance for each meeting by reading reports and minutes, and be punctual; and
- (e) remain at meetings until the business for which the meeting was called is concluded or adjourned, unless called away on First Nation business or another circumstance accepted by Resolution.

5.2 The Council Secretary shall keep an attendance record for every meeting listed in section 5.1(a), which shall be published each quarter.

5.3 The remuneration of members of Council is paid only in accordance with the schedule of remuneration approved by the Electors under the Financial Administration Code.

5.4 No remuneration is payable to a member of Council for a meeting listed in section 5.1(a) that the member did not attend without a reason accepted under that section. Where remuneration is paid as a salary or fixed honorarium, the schedule of remuneration shall state the amount deducted for each such absence.

5.5 No remuneration is payable to a member of Council for any period during which the member's Portfolio Mandate, quarterly report, or corrective plan under Part 3 is overdue, and remuneration for that period does not become payable when the document is later published.

5.6 The Finance Officer shall apply sections 5.4 and 5.5 on the written record of the Council Secretary, without the need for a Resolution, and shall report each deduction in the schedule of remuneration and expenses.

6 Financial Management

6.1 The Council shall:

- (a) ensure the financial affairs of the First Nation are conducted in a prudent, responsible, and careful manner, keeping in mind the best long-term interests of the First Nation;
- (b) comply with the Financial Administration Code, the Spending and Contracts Code, and every funding agreement with a government or funding agency;
- (c) oversee the Band Manager and ensure that Administration operates within approved budgets and service standards; and
- (d) ensure that audited consolidated financial statements are prepared and published each year as required by the Financial Administration Code and the *First Nations Financial Transparency Act*.

7 Administration

- 7.1 The Council shall ensure stable, competent, qualified, and efficient administration of the First Nation in accordance with the Administration and Personnel Code, and shall:
- (a) conduct itself at all times with integrity, courtesy, and decorum;
 - (b) subject to any preference given to Members, ensure that hiring decisions are made on the basis of merit through an open competition;
 - (c) ensure every employee has a written job description and reports through the Band Manager, and not to any individual member of Council; and
 - (d) ensure that the First Nation complies with its legal duties as an employer.
- 7.2 No position shall be created, and no person shall be hired, appointed, or paid, under any title that represents the person as a member of Council.

8 External Relations

- 8.1 The Council represents the First Nation in relations with other governments, and shall:
- (a) represent the interests of the First Nation, including its Treaty and Aboriginal rights, to federal, provincial, municipal, and other First Nation governments;
 - (b) foster respect for the constitutionally protected Treaty and Aboriginal rights of the First Nation; and
 - (c) report to Members in writing, within thirty (30) days, on the topics and outcomes of meetings held outside the community on behalf of the First Nation.

Part 3

Public Mandate and Reporting

9 Portfolio Mandates

- 9.1 Within thirty (30) days after taking office, the Chief and each Councillor shall deliver to the Council Secretary a Portfolio Mandate setting out not fewer than three (3) and not more than five (5) goals for their Portfolio for their term.
- 9.2 Each goal shall state:
- (a) the result to be achieved;
 - (b) how the result will be measured;
 - (c) the date by which it is to be achieved; and
 - (d) the budget line or funding source from which any cost will be paid, or a statement that the goal requires no spending.
- 9.3 The Council Secretary shall publish each Portfolio Mandate by Notice within seven (7) days after receiving it.
- 9.4 A member of Council may amend their Portfolio Mandate only after giving thirty (30) days' Notice of the amendment with written reasons and presenting it at an Accountability Session.
- 9.5 A Portfolio Mandate is a public statement of goals. It does not authorize any spending, hiring, or other act, which may be done only as the Documents of the First Nation provide.

10 Quarterly Reports

- 10.1 Within forty-five (45) days after the end of each quarter of the fiscal year, the Chief and each Councillor shall deliver to the Council Secretary a written report on each goal in their Portfolio Mandate, stating its status as one of the following, with reasons:
- (a) Green, meaning on track to be achieved by the date stated;
 - (b) Yellow, meaning at risk of not being achieved by the date stated; or
 - (c) Red, meaning not on track, or not achieved by the date stated.
- 10.2 Each quarterly report shall also summarize the member's Portfolio activities, the meetings attended on behalf of the First Nation, and any expenses claimed in the quarter.
- 10.3 The Council Secretary shall publish the quarterly reports by Notice within seven (7) days after the due date, and shall publish a list of any report not delivered.

11 Accountability Sessions

- 11.1 Council shall hold at least four (4) Accountability Sessions in each fiscal year, one in each quarter, each within thirty (30) days after the quarterly reports are due.
- 11.2 Every member of Council shall attend each Accountability Session, present their quarterly report, and answer questions from Members.
- 11.3 Members may submit written questions to the Council Secretary at least forty-eight (48) hours before an Accountability Session, and may ask questions in person or online during the session. The Council Secretary shall not screen questions, except to remove personal information about an identifiable Member and abusive language.
- 11.4 A question that is not answered at the session shall be answered in writing within fourteen (14) days after the session.
- 11.5 Each Accountability Session shall be recorded by a person who is not a member of Council. The recording and the written answers shall be published within seven (7) days after they are available.

12 Corrective Plans and Review

- 12.1 Where a goal is reported as Red in two (2) consecutive quarterly reports, or as Yellow or Red in three (3) of four (4) consecutive quarterly reports, the member of Council responsible shall publish a written corrective plan within thirty (30) days and present it at the next Accountability Session.
- 12.2 Where a corrective plan is not published within the time required, or the goal is reported as Red in the second quarterly report after the corrective plan is published, the matter shall be placed on the agenda of the next Council Meeting, at which Council shall consider a motion of censure, and on the agenda of the next Accountability Session.
- 12.3 Failure to deliver a Portfolio Mandate, a quarterly report, or a corrective plan within the time required by this Part is a breach of this By-law. Failure to achieve a goal is not, by itself, a breach of this By-law.

Part 4

Council Meetings

13 Regular and Special Council Meetings

- 13.1 Council shall hold a regular Council Meeting at least twice each month, except in July and August, when it shall meet at least once each month. At the first Council Meeting of each fiscal year, Council shall adopt by Resolution a schedule of regular Council Meetings for the year and publish it by Notice.
- 13.2 Any member of Council may call a Council Meeting. The member calling the meeting shall, where time permits, consult the other members of Council on the time and place.
- 13.3 Written notice of each regular Council Meeting, with the agenda and any reports to be considered, shall be delivered by the Council Secretary to each member of Council at least five (5) days before the meeting. The agenda shall be posted as a Notice at least three (3) days before the meeting.
- 13.4 A special Council Meeting may be called on at least forty-eight (48) hours' written notice to each member of Council, stating the business to be considered. Only that business may be dealt with. The Notice of a special Council Meeting shall be posted as soon as it is sent.
- 13.5 A member of Council may attend a Council Meeting by telephone or video conference if all participants can hear each other. A member attending in that way is present for the purposes of quorum and voting.

14 Emergency Meetings

- 14.1 In an emergency threatening health, safety, or property, a Council Meeting may be called on shorter notice by any reasonable means, including by telephone or electronic message.
- 14.2 The reason for the short notice shall be recorded in the minutes, and any Resolution passed at the meeting shall be posted by Notice within two (2) days.
- 14.3 A Resolution passed at a meeting called under section 14.1 ceases to have effect at the end of the next regular Council Meeting unless it is confirmed by Resolution at that meeting. Anything lawfully done under it before it ceases to have effect remains valid.
- 14.4 A meeting called under section 14.1 may deal only with the emergency.

15 Chair

- 15.1 The Chief, or their designate, shall chair all Council Meetings and shall open and close meetings, ensure the agenda is followed, direct discussion, put motions to a vote, announce decisions, maintain order, rule on points of order, and do all other things necessary to ensure observance of this By-law.
- 15.2 If the Chief is absent and has not appointed a chair, the members present shall appoint a chair.

16 Open Meetings and Closed Sessions

- 16.1 Every Council Meeting shall be open to Members, and Members may observe in person or, where the meeting is held with electronic access, online.
- 16.2 Council shall arrange for every Council Meeting, other than a Closed Session, to be audio recorded. The recording shall be kept for at least two (2) years, and any Member may listen to it or obtain a copy on request.
- 16.3 Council may move into Closed Session only by a motion, passed in the open part of the meeting, that states which of the following grounds applies:
 - (a) personnel matters about an identifiable employee;
 - (b) legal advice subject to solicitor-client privilege, or litigation involving the First Nation;
 - (c) active negotiations, where disclosure would prejudice the First Nation's position;
 - (d) information about an identifiable Member that is Confidential Information; or
 - (e) the security of persons or property.
- 16.4 No decision shall be made in a Closed Session. Council shall return to the open part of the meeting to vote on any matter discussed in Closed Session.
- 16.5 Observers shall follow the rules of conduct established by Council and shall leave if the chair so directs for disorderly conduct. No Member may be excluded from the open part of a meeting for any other reason.
- 16.6 The minutes of a Closed Session shall state the ground under section 16.3, the persons present, and the general subject, and shall be kept by the Council Secretary. They shall be made available to Members when the ground for confidentiality no longer applies.

Part 5

Decision Making

17 Quorum and Decisions

- 17.1 All decisions of Council shall be made at a Council Meeting at which a Quorum of Council is present, and recorded by Resolution.
- 17.2 A decision made by telephone, text message, email, or by polling members individually or collecting signatures outside a Council Meeting is not a Resolution. No employee shall act on it, and any payment, hiring, contract, or allocation made on such a basis is unauthorized.
- 17.3 If no Quorum of Council is present within one (1) hour after the time set for a meeting, the Council Secretary shall record the names of the members present, and the meeting shall stand adjourned. No motion may be decided without a Quorum of Council.
- 17.4 Every Band Council Resolution shall state the date and place of the meeting, the members present, the members voting for and against, and any declared Conflict of Interest, and shall be signed by the members who voted in favour.
- 17.5 A vote cast by a member of Council on a matter in which the member has a Conflict of Interest, or on the member's own remuneration, expenses, contract, loan, benefit, employment, or housing, is void, and a Resolution that would not have passed without that vote is void, as provided in the Conduct Code.

18 Order of Business

- 18.1 The order of business at each regular Council Meeting shall be:
- (a) adoption of the agenda;
 - (b) declarations of Conflict of Interest;
 - (c) adoption of the minutes of the previous Council Meeting;
 - (d) questions and comments from Members present, for at least fifteen (15) minutes;
 - (e) Portfolio reports and reports of the Band Manager;
 - (f) unfinished business;
 - (g) new business; and
 - (h) adjournment.

19 Motions and Voting

- 19.1 Each motion shall be presented or read by the mover, seconded, and placed before the meeting for consideration. After a motion has been placed before Council it may be withdrawn only with the consent of a majority of the members present.
- 19.2 A member of Council who wishes to speak shall address the chair and confine their remarks to the matter before Council. If more than one member wishes to speak, the chair shall decide the order.
- 19.3 The chair may call a member to order, and debate is suspended until the point of order is decided. A member may speak only once on a point of order, and the chair shall decide it without debate.
- 19.4 Every member present when a matter is put to a vote shall vote, unless the member has declared a Conflict of Interest.
- 19.5 There shall be no proxy voting.
- 19.6 Each member shall state their vote openly, and the Council Secretary shall record in the minutes how each member voted. A member who is present and refuses to vote shall be recorded as refusing to vote, and the refusal shall be reported to the Integrity Commissioner.
- 19.7 Any member may require that the motion under consideration be read at any point in the debate, but not so as to interrupt a member who is speaking.
- 19.8 All matters shall be decided by a majority of the votes cast. A motion that was defeated may be brought forward as a new motion at a later Council Meeting.

Part 6

Member Access Meetings

20 Registration and Conduct

- 20.1 A Member who wishes to meet with Council or a member of Council at a Member Access Meeting may register with the Council Secretary, who shall schedule meetings in the order registered.
- 20.2 A Member Access Meeting may be held in person, by telephone, or by video conference.
- 20.3 Unless Council sets a longer time in advance, each Member is entitled to meet for up to thirty (30) minutes.
- 20.4 Documents a Member intends to rely on should be provided to the Council Secretary at least twenty-four (24) hours in advance. A Member who does not provide documents in advance may still be heard.

21 Decisions on Matters Raised

- 21.1 A matter raised at a Member Access Meeting that requires a decision of Council shall be placed on the agenda of a Council Meeting held within thirty (30) days, and Council shall inform the Member of its decision in writing within ten (10) days after deciding it.
- 21.2 The Member who raised the matter may attend the open part of the Council Meeting at which it is decided.
- 21.3 A matter that is to be decided by a person or body other than Council under a Document of the First Nation shall be referred to that person or body, and the Member shall be told in writing where it was referred.

Part 7

Portfolios and Committees

22 Portfolios

- 22.1 Each Councillor holds the Portfolio to which they were elected under the Election Regulations. The Chief holds the responsibilities set out for the Chief in those Regulations.
- 22.2 A Portfolio holder is accountable to Council and to Members for oversight of the matters in their Portfolio. A Portfolio holder has no authority to direct employees, approve spending, or bind the First Nation, and shall obtain information from Administration through the Band Manager.
- 22.3 Each Portfolio holder shall present an annual report to Members at the Annual General Assembly.
- 22.4 A Portfolio holder shall ensure that Council has all relevant information before considering any motion in relation to the Portfolio.

23 Committees

- 23.1 Council may establish committees by Resolution with written terms of reference, and may appoint Members and other qualified persons to investigate, report, or make recommendations on any matter under consideration by Council.
- 23.2 Council shall establish a member advisory committee for each Portfolio, open to Members who volunteer, which may make written recommendations to the Portfolio holder and to Council.
- 23.3 Nothing in this Part affects the Finance and Audit Committee, the Housing Allocation Committee, the Elders Membership Committee, the Appeals Panel, or any other body whose composition and powers are set by another Document of the First Nation.

Part 8

Records

24 Council Secretary

- 24.1 Council shall appoint a Council Secretary, who shall be an employee reporting to the Band Manager and not to any member of Council.
- 24.2 The Council Secretary shall keep attendance records; prepare, distribute, and publish agendas and minutes; organize Council Meetings; maintain the files and records of Council, including every Band Council Resolution; receive and publish Portfolio Mandates, quarterly reports, and corrective plans; schedule Member Access Meetings; and do such other things as Council directs for the orderly administration of Council.

25 Minutes and Resolutions

- 25.1 The minutes of each Council Meeting shall include the members present, every declared Conflict of Interest, the substance of the discussions, every motion, how each member voted, and every decision.
- 25.2 The minutes of Annual General Assemblies, Accountability Sessions, Information Meetings, and Special Meetings shall include the substance of the discussions, the questions asked and answers given, and any motions and decisions.
- 25.3 Draft minutes of each Council Meeting shall be published on the website of the First Nation, and posted at each Band Office, within twenty-one (21) days after the meeting, marked as draft until adopted, and the adopted minutes shall be published within seven (7) days after adoption.
- 25.4 Every Band Council Resolution shall be published within fourteen (14) days after it is passed, except to the extent that it contains Confidential Information, in which case the Resolution shall be published with only that information removed and a note stating the ground.
- 25.5 Members may read, copy, and photograph minutes and Resolutions that are published or available under this Part.

26 Access to Records

- 26.1 Members may request access to records of the First Nation under the Access to Information and Privacy Code.
- 26.2 Until the Access to Information and Privacy Code is in force:
- (a) any Member may request in writing, from the Band Manager, access to any record of the First Nation relating to its governance, finances, contracts, programs, or services;
 - (b) the Band Manager shall respond within thirty (30) days by providing the record or a copy of it, or by refusing access to the parts that are Confidential Information with written reasons identifying the ground in section 2.1(h), and information that can reasonably be separated from Confidential Information shall be provided;
 - (c) a Member may be charged only the reasonable cost of copying, which shall not exceed twenty-five cents (\$0.25) per page, and no fee shall be charged for electronic copies; and
 - (d) a Member who is refused access, or who does not receive a response within thirty (30) days, may ask the Integrity Commissioner to review the matter, and the Band Manager shall comply with the Integrity Commissioner's decision.
- 26.3 No employee or member of Council shall destroy, alter, or conceal a record for the purpose of preventing access to it.

27 Transfer of Records and Property

- 27.1 Within seven (7) days after a person ceases to hold office as a member of Council, the person shall deliver to the Band Manager every record, key, device, password, access credential, payment card, and other property of the First Nation in their possession or control. The Band Manager shall give a written receipt and shall report any failure to deliver to Council and the Integrity Commissioner.
- 27.2 Records created or received by a member of Council in carrying out the duties of office, including messages on personal devices or accounts, are records of the First Nation and shall be delivered under section 27.1.
- 27.3 Within fourteen (14) days after the declaration of the results of an Election, the Band Manager shall deliver to each person elected a written briefing listing the current budget and financial position, every contract over ten thousand dollars (\$10,000.00) in force, every legal proceeding involving the First Nation, every Resolution passed in the previous twelve (12) months, and the status of each Portfolio Mandate.

Part 9

General

28 Conduct of Members of Council

- 28.1 Every member of Council shall comply with the Conduct Code. The rules on Conflict of Interest, gifts, disclosure of interests, the Integrity Commissioner, complaints, and sanctions are set out in the Conduct Code.
- 28.2 A breach of this By-law by a member of Council may be the subject of a complaint to the Integrity Commissioner under the Conduct Code.

29 Supplementary Rules, Amendment, and Protected Provisions

- 29.1 Council may make other rules of procedure by Resolution that are not inconsistent with this By-law.
- 29.2 The following are Protected Provisions: paragraphs 3.1(d) and (h); sections 4, 5, and 7.2; Part 3; sections 14 and 16; Part 5; Part 8; and this section.
- 29.3 This By-law may be amended by Council by motion, published under section 86 of the *Indian Act*, except that an amendment to a Protected Provision has no effect unless it has also been approved by the Electors in a Ratification Vote under the Election Regulations or the Community Votes and Petitions Code.
- 29.4 An amendment that increases Members' rights of access, notice, or participation, or that adds to the duties of members of Council, may be made by Council without a vote of the Electors.

30 Publication, Repeal, Transition, and Coming into Force

- 30.1 Council shall publish this By-law, and every amendment to it, on the website of the First Nation and in the First Nations Gazette, as required by section 86 of the *Indian Act*, and shall provide a copy to any person who requests one.
- 30.2 By-law No. 2014.2, the Council Accountability and Procedures By-law, is repealed on the day this By-law comes into force.
- 30.3 This By-law comes into force on the day it is first published under subsection 86(1) of the *Indian Act*.
- 30.4 Members of Council in office when this By-law comes into force shall deliver their first Portfolio Mandates within thirty (30) days after it comes into force.
- 30.5 Until the Conduct Code is in force and an Integrity Commissioner is appointed, the functions this By-law assigns to the Integrity Commissioner shall be performed by a retired judge or lawyer who is not a Member, selected by Council by Resolution.
- 30.6 Until the Election Regulations provide for a Ratification Vote, a vote of the Electors required by this By-law shall be held at a Special Meeting of Electors called on at least fourteen (14) days' Notice, by secret ballot.

APPROVED AND PASSED at a duly convened meeting of the Council of the Fort McMurray No. 468 First Nation held at _____, in the Province of Alberta, this _____ day of _____, 20____. A Quorum of Council consists of _____ members of Council.

Voting in favour of the By-law are the following members of Council:

Chief	
Councillor	
Councillor	
Councillor	

Certificate of publication

Published on the website of the First Nation and in the First Nations Gazette on	
Signature and title	

Certificate of ratification by the Electors

Approved by the Electors on (date)	
Votes in favour / against / total Electors on the List	
Signature of Electoral Officer or chair of the Special Meeting	

Explanatory Notes

1. Purpose

This By-law repeals and replaces By-law No. 2014.2, the Council Accountability and Procedures By-law. The conduct and conflict of interest rules that were in the 2014 By-law are now in the Conduct and Conflict of Interest Code (Document 07). These notes are not part of the By-law.

2. Adoption

- Council enacts the By-law by motion under section 26.1 of By-law No. 2014.2.
- The By-law is published on the website of the First Nation and in the First Nations Gazette, and comes into force on publication (Indian Act, section 86).
- The Electors ratify the By-law. Once ratified, and once the Customary Election Regulations, 2026 are in force, the Protected Provisions may be amended only with the approval of the Electors (section 29.3; Regulations, section 24.2).

3. Key provisions

- Each member of Council publishes three to five measurable goals within 30 days after taking office, and reports on each goal every quarter as Green, Yellow, or Red (sections 9, 10).
- Four Accountability Sessions a year. Questions are not screened. Unanswered questions are answered in writing within 14 days. Sessions are recorded and published (section 11).
- A corrective plan is required when a goal is off track, and a motion of censure is considered if the plan is not delivered or does not work (section 12).
- Remuneration is not payable for unexcused absences or while a required report is overdue. The Finance Officer applies these rules without a Resolution (sections 5.4 to 5.6).
- Emergency Resolutions lapse unless confirmed at the next regular meeting (section 14.3).
- Decisions by telephone, text, email, or collected signatures are not Resolutions, and employees may not act on them (section 17.2).
- Meetings are open and recorded. Closed Sessions are limited to five grounds, and no decision is made in a Closed Session (section 16).
- Minutes are published within 21 days and Band Council Resolutions within 14 days (section 25).
- Records and property of the First Nation are returned within 7 days after a person leaves office. Newly elected members receive a written briefing within 14 days (section 27).

4. Changes from By-law No. 2014.2

2014 section	2014 provision	2026 provision
3.1(g)	Individual Council members may not direct or interfere with the administration	Kept. Employees report through the Band Manager (3.1(h), 7.1(c))
4.1(a), (b)	Annual General Assembly and quarterly Information Meetings, timing not stated	Annual General Assembly within 150 days after year-end. Four Accountability Sessions a year with online participation (4.1, 4.2, 11)
4.1(g)	Audit report provided on request	Audit report and schedule of Council remuneration and expenses on request (4.1(g))
4.1(h), 23.3	Minutes available only for meetings open to observers. No copying or removal	All minutes published. Members may copy (25.3 to 25.5)
4.2	Members may not request Confidential Information	Confidential Information defined and time-limited. Access under the Access to Information and Privacy Code (2.1(h), 26)
6.3, 6.5	Two days' notice to Council. No public notice. Oral notice for short-notice meetings	Five days' notice. Agenda posted three days before. Emergency Resolutions lapse unless confirmed (13.3, 14)
10	Conflict of interest rules	Moved to the Conduct and Conflict of Interest Code (Document 07)
12.1	Meetings closed to observers unless opened by Council	Meetings open. Closed Sessions for listed grounds only (16)
15.10	A Councillor who refuses to vote is deemed to vote in favour	Refusal recorded as a refusal (19.6)
19.2	Decisions from Member Access Meetings may be deferred without a time limit	Decided within 30 days. Written answer within 10 days (21.1)
23.4	Recordings privileged. Review by Members prohibited	Recordings available to Members (16.2)
26.1	Amendment by motion of Council	Amendment by motion, except Protected Provisions, which also require approval of the Electors (29.2, 29.3)
27.1	In force when passed by Council	In force on publication (Indian Act, section 86) (30.3)
None	No goals, quarterly reports, or consequences for missed duties	Portfolio Mandates, quarterly reports, corrective plans, and remuneration rules (5, Part 3)
None	No rule for return of records and property	Return within 7 days. Briefing for newly elected members (27)

5. Legal sources

Source	Provision
Indian Act, s. 2(3)(b)	Powers of council exercised by a majority of councillors present at a meeting duly convened
Indian Act, s. 81(1)(c), (d), (q)	By-laws for law and order, disorderly conduct, and ancillary matters
Indian Act, s. 86	Publication of by-laws on the internet, in the First Nations Gazette, or in a newspaper. In force on publication. Copy to any person on request
First Nations Financial Transparency Act, ss. 5 to 8	Audited consolidated financial statements and schedule of remuneration and expenses

6. Records required before adoption

- A copy of By-law No. 2014.2 as enacted, and confirmation of whether it was published under section 86 of the Indian Act.